

2	Cuellar-Oliver vs. Lilly 30-2024-01415602	1. Motion to Strike – Anti SLAPP 2. Demurrer to Complaint filed by Matthew E. Lilly on 10/03/2024 3. Case Management Conference Defendant Matthew E. Lilly’s (“Defendant”) unopposed Anti-SLAPP Motion to Strike is GRANTED. Code of Civil Procedure section 425.16 permits a special motion to strike Strategic Litigation Against Public Participation (“SLAPP”) lawsuits. A SLAPP suit is “a meritless suit filed primarily to chill the defendant’s exercise of First Amendment rights.” <i>Finton Construction, Inc. v. Bidna & Keys, APLC</i>, 238 Cal. App. 4th 200, 208 (2015). The trial court engages in a two-step process to determine whether a special motion to strike should be granted. Code Civ. Proc., § 425.16(b)(1). First, the court decides whether the defendant has met its initial burden of establishing a <i>prima facie</i> showing that defendant’s acts, of which the plaintiff complains, were taken in furtherance of the defendant’s constitutional rights of petition or free speech in connection with a public issue. <i>Navellier v. Sletten</i>, 29 Cal. 4th 82, 88 (2002). Courts must focus on the substance of the lawsuit in analyzing the first prong of a special motion to strike. <i>Scott v. Metabolife Internat., Inc.</i>, 115 Cal. App. 4th 404, 413–414 (2004). “If liability is not based on protected activity, the cause of action does not target the protected activity and is therefore not subject to the SLAPP statute.” <i>Haight Ashbury Free Clinics, Inc. v. Happening House Ventures</i>, 184 Cal. App. 4th 1539, 1550 (2010). Once the moving defendant’s initial evidentiary burden is met, then the burden shifts to the plaintiff to establish a probability that the plaintiff will prevail on the claim, <i>i.e.</i>, a showing of facts that would, if proved at trial, support a judgment in the plaintiff’s favor. <i>DuPont Merck Pharm. Co. v. Superior Court</i>, 78 Cal. App. 4th 562, 567-568 (2000). The plaintiff “must demonstrate that the <i>complaint is both legally sufficient</i> and supported by a sufficient <i>prima facie</i> showing of facts to sustain a favorable judgment.” <i>Premier Med.</i>
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Mgmt. Systems, Inc. v. Cal. Ins. Guar. Assn., 136 Cal. App. 4th 464, 476 (2006) (emphasis in original; internal quotes omitted).

First, the Complaint alleges that Defendant, who is an attorney, was unprofessional while serving as counsel of record for third party Yesenia Rodriguez at a civil harassment restraining order hearing that Plaintiff filed against Rodriguez. Compl. at 1. Specifically, Plaintiff alleges that she “was alarm by the conduct of Matthew E Lilly displayed not asking question or answering on behalf of Yesenia Rodriguez.” *Id.* Plaintiff further alleges that “[t]his leads me to request to start a civil case in regards to making the Court aware that the practice was unprofessional that the stranger acted as a lawyer to be an accomplice of fraud illegal activities defending a stalker” *Id.* Plaintiff finally alleges that “Matthew E. Lilly could have written this name without being his actual name Matthew E. Lilly may have had a legal name change He might be an illegal person stealing birth certificates.” *Id.* at 2.

Protected activity under the anti-SLAPP statute includes: “(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law; [and] (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive or judicial body, or any other official proceeding authorized by law.” Code Civ. Proc., § 425.16(e)(1) - (2).

Here, all of the acts alleged in the Complaint fall squarely within the above two categories.

Second, as Defendant has met his burden and demonstrated that the Complaint arises from protected activity, the burden shifts to Plaintiff to demonstrate that her claims are legally sufficient and factually substantiated. *Newport Harbor Offices & Marina, LLC v. Morris Cerullo World Evangelism*, 23 Cal. App. 5th 28, 49 (2018). “To meet this burden, a plaintiff cannot rely on its

		own pleading, even if verified . . . but must present admissible evidence.” <i>Id.</i> Plaintiff did not file an opposition to the motion and therefore has presented no evidence to support the allegations of her complaint. Further, the acts complained of appear to be privileged under Civil Code section 47. Accordingly, the motion is GRANTED. Defendant is awarded \$457 in costs incurred in connection with filing this motion. Code Civ. Proc., § 425.16(c)(1). In light of the above ruling on Defendant’s Special Motion to Strike, the Court finds Defendant’s demurrer MOOT. Moving party to give notice.
3	Ghanem vs. Abutsleb 30-2019-01111226	Motion for New Trial filed by Ibrahim Ghanenem on 03/18/2025 No tentative ruling.
4	Giardina vs. SetSchedule, Inc. 30-2023-01328940	1. Motion to be Relieved as Counsel of Record filed by counsel for SetSchedule LLC on 11/07/2024 2. Motion to be Relieved as Counsel of Record filed by counsel for SetSchedule, Inc. on 11/07/2024 The unopposed motions of attorney Jesse Caryl of Bent Caryl & Kroll, LLP to be relieved as counsel for Defendants SetSchedule, Inc. and SetSchedule, LLC are GRANTED. Service on the clients and on all other parties who have appeared in the case was proper and all required forms containing the requisite information were filed pursuant to California Rules of Court, rule 3.1362. The order will take effect once moving attorney files proof of service of the signed orders (MC-053) on the clients.